

IPERMIT APPLICATION # 26045817

STATE OF TEXAS §
 §
COUNTY OF HARRIS §

“My name is Marcus James Whitfield (first, middle, and last name), my date of birth is 07/02/1971, and my address is 5120 Sample Commerce Dr, Ste 900, Houston, TX 77027 (street, city, state, zip code) and USA (country). I am over the age of eighteen and legally competent to make this Declaration. This Declaration will be submitted to the City of Houston, Texas (the “City”) as part of the Application for a Building Permit for a project (the “Project”) located or to be located in the Houston Heights Subdivision, Tract or Reserve -, Block No. 112, Lot No. 5 (the “Land”). The physical address of the Land is 1847 Yale St Houston, Texas 77008.
(Street Address) (City) (Zip Code)

The OWNER of the Land is Yale Street Retail Partners, LP, which is a
(Business Entity Owner Name)
Texas limited partnership (the “Owner”). I hold the position of
(Type of Entity, i.e. Texas Corporation, LLC, LP, etc.)
VP, Yale Street Retail GP, LLC (its GP) with and for the Owner, and I am an “Associate” of the Owner
(Title of Position)

as that term is defined in the Texas Business Organizations Code, Section 1.002(2)(A)(i). I am authorized to sign this Declaration on behalf of the Owner. I understand this Declaration is binding on the Owner.

I am personally familiar with any deed restrictions associated with the Land. I understand, for the purposes of the Application, the term ‘Deed Restriction’ means any and every restriction or covenant contained in (or incorporated by reference into) a plan, plat, replat, deed, or any other publicly recorded document that limits or affects the use of the Land in any way. I understand copies of the Deed Restrictions, if any, are available for review at the office of the Clerk of the County in which the Land is located. I have reviewed the Deed Restrictions and **the Project does not violate the Deed Restrictions, if any, that apply to the Land.**

I have personal knowledge of the statements made in the Application and every fact stated herein. None of the statements in the Application are misleading or false and every fact stated herein is true and correct. I acknowledge that issuance of the license, permit or certificate does not excuse or approve any violation of deed restrictions or city, state, or federal laws or regulations. To the extent that this Declaration is made on behalf of a corporation or any other legal entity or persons, I certify that I have fully advised them of the contents of the Application and this Declaration and that I am authorized to execute this Declaration.

I understand and agree that if any fact stated in this Declaration is false, the City may void any permit(s) issued by the City for the Project or the Land, and the City may order the Owner or its successor, or may order me, to remove all or part of the Project at the Owner’s and/or my expense.

I declare under penalty of perjury that the foregoing is true and correct.”

Executed in Harris County, State of Texas, on the 12 day of June
(month), 2026 (year).

OWNER
Business Entity: Yale Street Retail Partners, LP
Signature: Marcus J. Whitfield
Name (print): Marcus J. Whitfield
Title (print): Vice President of its General Partner